

ATTORNEY OR PARTY WITHOUT ATTORNEY NAME: Jonathan Van Ee FIRM NAME: The Law Offices of Jonathan Van Ee STREET ADDRESS: 7172 Regional Street No. 342 CITY: Dublin TELEPHONE NO.: 415 938 7694 E-MAIL ADDRESS: jonathan@probusinessattorneys.com ATTORNEY FOR (name): Petitioner Alliance Manufactured Homes		STATE BAR NUMBER: 214129 STATE: CA ZIP CODE: 94568 FAX NO.:	FOR COURT USE ONLY Electronically Filed by Superior Court of CA, County of Santa Clara, on 6/5/2024 11:28 AM Reviewed By: Julie Mazon Case #24CV430521 Envelope: 15546523
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA STREET ADDRESS: 191 North First Street MAILING ADDRESS: same CITY AND ZIP CODE: San Jose CA 95113 BRANCH NAME: Downtown Courthouse			
PLAINTIFF/PETITIONER: Alliance Manufactured Homes, Inc. DEFENDANT/RESPONDENT: Daisy V. Morris and Daisy W. Morris, et al.			
REQUEST FOR DISMISSAL			CASE NUMBER: 24CV430521
A conformed copy will not be returned by the clerk unless a method of return is provided with the document.			
This form may not be used for dismissal of a derivative action or a class action or of any party or cause of action in a class action. (Cal. Rules of Court, rules 3.760 and 3.770.)			

1. TO THE CLERK: Please **dismiss** this action as follows:

- a. (1) ☒ With prejudice (2) ☐ Without prejudice
b. (1) ☐ Complaint (2) ☐ Petition
(3) ☐ Cross-complaint filed by (name):
(4) ☐ Cross-complaint filed by (name):
(5) ☒ Entire action of all parties and all causes of action
(6) ☐ Other (specify):*

on (date):

on (date):

2. (Complete in all cases except family law cases.)

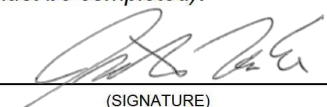
The court ☐ did ☒ did not waive court fees and costs for a party in this case. (This information may be obtained from the clerk. If court fees and costs were waived, the declaration on the back of this form must be completed).

Date: June 5, 2024

Jonathan Van Ee

(TYPE OR PRINT NAME OF ☒ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)

*If dismissal requested is of specified parties only of specified causes of action only, or of specified cross-complaints only, so state and identify the parties, causes of action, or cross-complaints to be dismissed


(SIGNATURE)

Attorney or party without attorney for:

☐ Plaintiff/Petitioner ☐ Defendant/Respondent
☐ Cross-Complainant

3. TO THE CLERK: Consent to the above dismissal is hereby given.**

Date: _____

(TYPE OR PRINT NAME OF ☐ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)

** If a cross-complaint - or Response (Family Law) seeking affirmative relief - is on file, the attorney for cross-complainant (respondent) must sign this consent if required by Code of Civil Procedure section 581 (i) or (j).


(SIGNATURE)

Attorney or party without attorney for:

☐ Plaintiff/Petitioner ☐ Defendant/Respondent
☐ Cross-Complainant

4. ☒ Dismissal entered as requested on (date) 6/5/2024 11:28 AM

5. ☐ Dismissal entered on (date): as to only (name):

6. ☐ Dismissal **not entered** as requested for the following reasons (specify):

7. a. ☒ Attorney or party without attorney notified on (date) 6/5/2024 11:28 AM

b. ☐ Attorney or party without attorney not notified. Filing party failed to provide
☐ a copy to be conformed ☐ means to return conformed copy

Date: 6/5/2024 11:28 AM

Clerk, by Julie Mazon

, Deputy

Page 1 of 2

PLAINTIFF/PETITIONER: Alliance Manufactured Homes, Inc.
 DEFENDANT/RESPONDENT: Daisy V. Morris and Daisy W. Morris, et al.

CASE NUMBER:
 24CV430521

COURT'S RECOVERY OF WAIVED COURT FEES AND COSTS

If a party whose court fees and costs were initially waived has recovered or will recover \$10,000 or more in value by way of settlement, compromise, arbitration award, mediation settlement, or other means, the court has a statutory lien on that recovery. The court may refuse to dismiss the case until the lien is satisfied. (Gov. Code, § 68637.)

Declaration Concerning Waived Court Fees

1. The court waived court fees and costs in this action for *(name)*:
2. The person named in item 1 is *(check one below)*:
 - a. ☐ not recovering anything of value by this action.
 - b. ☐ recovering less than \$10,000 in value by this action.
 - c. ☐ recovering \$10,000 or more in value by this action. *(If item 2c is checked, item 3 must be completed.)*
3. All court fees and court costs that were waived in this action have been paid to the court *(check one)*: ☐ Yes ☐ No

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date: _____

 (TYPE OR PRINT NAME OF ☐ ATTORNEY ☐ PARTY MAKING DECLARATION)



 (SIGNATURE)

PROOF OF SERVICE

ALLIANCE V. MORRIS, ET AL.

SANTA CLARA COUNTY SUPERIOR COURT CASE No. 24CV430521

I, Jonathan Van Ee, declare,

I am employed in the County of Alameda, State of California. I am over the age of 18 and not a party to the within action; my business address is 7172 Regional Street No. 342, Dublin, CA 94568, and my e-service address is jonathan@probusinessattorneys.com.

REQUEST FOR DISMISSAL

On the date that appears by my signature below I served the foregoing document on the parties listed below

- by placing the document(s) listed above in a sealed envelope with postage thereon fully prepaid, in the United States mail at Dublin, CA addressed as follows:

- by mailing the document(s) listed above in a sealed envelope via certified mail with return receipt requested (where possible) addressed as follows:

- by transmitting such document(s) listed above via facsimile to the parties listed below.

-X causing the document(s) listed above to be served via electronic transmission, which were e-filed with the Santa Clara County Superior Court and e-served, to the email address(es) of the party(ies) designated below further to the Court's Rules regarding e-filing procedures.

- I caused to be delivered such envelope(s) by hand to the offices of the addressee(s) by personal service below:

Mark A. Gonzalez, Esq.
Lead Deputy County Counsel
Office of the County Counsel,
County of Santa Clara
373 West Julian Street, 3rd Floor
San José, CA 95110
Mark.Gonzalez@cco.sccgov.org

Counsel for Public Administrator

Priscilla Romero
priscilla.romero@ssa.sccgov.org

Public Administrator

1 Sean Cooper
2 Sean.Cooper@ssa.sccgov.org

Estate Administrator

3 I affirm the following: I am readily familiar with the firm's collection and processing
4 correspondence for mailing. Under that practice it would be deposited with U.S. postal service
5 on that same day with postage thereon fully prepaid at Dublin, California in the ordinary course
6 of business. I certify that, where required, declarant(s) have signed a printed form of the
7 document and the original, signed document is available for inspection and copying at the
8 request of the court or any other party.

9 I declare under penalty of perjury under the laws of the State of California that the above
10 is true and correct.

11 Dated: June 5, 2024



12
13 Jonathan Van Ee
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28